

RESOLUTION NO. \_\_\_\_\_

Entitled: “A RESOLUTION SUPPORTING THE BOARD OF PUBLIC UTILITIES’ APPLICATION TO THE WYOMING STATE LOAN AND INVESTMENT BOARD FOR A LOCAL GOVERNMENT PROJECT ARPA GRANT FOR THE WATER RECLAMATION FACILITIES HYDRAULIC CAPACITY PROJECT IN THE AMOUNT OF \$1,984,000.00 AND AUTHORIZING THE DIRECTOR OF THE BOARD OF PUBLIC UTILITIES TO EXECUTE THE APPLICATION AND ALL RELATED DOCUMENTS”

**WHEREAS**, W.S. § 15-7-401, provides for a Board of Public Utilities (BOPU) to manage, operate, maintain, and control municipal waterworks, sanitary sewer system and sewage disposal plants;

**WHEREAS**, Cheyenne City Code, Section 2.68.010, establishes that the BOPU has the exclusive authority to manage, operate, maintain and control the Cheyenne Municipal Waterworks, Sanitary Sewage System and Sewage Disposal Plants of the City and to make all rules and regulations necessary for the safe, economical and efficient operation and maintenance of the above facilities;

**WHEREAS**, all sanitary sewer wastewater, including storm water inflow and infiltration, flow to the Crow Creek Water Reclamation Facility (WRF) and the Dry Creek WRF where the combined flow is treated and discharged to Crow Creek or additionally treated and used as recycle water supply;

**WHEREAS**, during storm events, Crow Creek elevation rises and Crow Creek WRF is unable to discharge to the creek;

**WHEREAS**, the relocation of the Crow Creek WRF outfall location will allow the plant to continue to operate during times of high Crow Creek water elevation;

**WHEREAS**, the 2013 Water and Wastewater Master Plan recommends the installation of equalization basins at Dry Creek WRF to store water during high storm flow events and allow the plant to treat the water after the storm subsides;

**WHEREAS**, the BOPU desires to pursue the WRF Hydraulic Capacity Project (Project) to install equalization basins at Dry Creek WRF and relocate the outfall pipeline at Crow Creek WRF;

**WHEREAS**, the Local Government Project ARPA Grant program required that certain criteria be met, as described in the State Loan and Investment Board’s Rules and Regulations governing the program, and to the best of our knowledge the application meets those criteria;

**WHEREAS**, the Project cost estimate for engineering, construction, and other administrative costs is \$3,100,000.00, which includes engineering services, easements, construction and miscellaneous costs;

**WHEREAS**, the Project meets the criteria and is eligible for consideration of grant funding from the Water & Sewer ARPA Grant Program in the amount of \$1,984,000.00, sixty-four percent (64%);

**WHEREAS**, the BOPU is committed to paying the remainder of PROJECT costs from revenue from the Sewer Enterprise Fund in the amount of \$1,116,000.00, thirty-six percent (36%);

**WHEREAS**, if awarded the ARPA grant, the funds shall only be used to cover costs incurred during the period beginning on March 3, 2021 and ending on September 1, 2026; and

**WHEREAS**, the BOPU recognizes that the PROJECT is necessary and that it is essential to maintain reliable operation of Dry Creek and Crow Creek WRFs during high storm events.

**NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE**, that an application be submitted to the Wyoming State Loan and Investment Board for a Local Government Project ARPA Grant for an amount not to exceed \$1,984,000.00 for project costs such as, but not limited to, engineering services, construction, administration, and all related costs of the Water Reclamation Facilities Hydraulic Capacity Project;

**BE IT FURTHER RESOLVED**, that the Mayor, the City Clerk, and the Director of the Board of Public Utilities are hereby designated as the authorized representatives of the City of Cheyenne to act on behalf of the City of Cheyenne in all matters related to this application and related documents, including any amendments to the Project Agreement.

PRESENTED, READ AND ADOPTED this \_\_\_\_\_ day of \_\_\_\_\_, 2023.

\_\_\_\_\_  
Patrick Collins, Mayor

(SEAL)

ATTEST:

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Kristina F. Jones, City Clerk